

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CWP-19204-2026

Date of decision: 12.06.2026

Khatri Jan Kalyan Sabha

...Petitioner

Versus

Kshtriya Sabha/Khatri Sabha and another

...Respondents

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. D.S. Matya, Advocate (Through VC)
for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of the present writ petition filed under Article 226 of the Constitution of India, the petitioner seeks issuance of a writ in the nature of certiorari for quashing the proceedings pending before respondent No.2 – District Registrar, Firms and Societies, Ambala, arising out of an appeal preferred by respondent No.1 against the order dated 27.06.2024.

2. Learned counsel for the petitioner submits that the petitioner is a society duly registered under the Haryana Registration and Regulation of Societies Act, 2012. It is contended that the controversy originated from a complaint dated 26.02.2024 submitted by respondent No.1, claiming itself to be Kshtriya Sabha/Khatri Sabha registered under Registration No.44 of 1939-40, seeking cancellation of the registration of the petitioner-society. After affording opportunity of hearing to the concerned parties and considering the material placed on record, the complaint came to be closed by respondent No.2 vide order dated 27.06.2024 (Annexure P-4).

3. Learned counsel further submits that respondent No.1 thereafter preferred an appeal on 03.01.2025 challenging the aforesaid



order. According to the petitioner, the appeal is ex facie barred by limitation and is not accompanied by any application seeking condonation of delay. It is further argued that under the statutory scheme, the appeal is maintainable before the Registrar and not before the District Registrar and, therefore, the proceedings are without jurisdiction. Learned counsel points out that the petitioner has already filed a detailed reply to the appeal and has also moved an application dated 05.06.2026 (Annexure P-7) raising preliminary objections regarding maintainability, limitation and jurisdiction. However, respondent No.2 has fixed the matter for final arguments on 15.06.2026 through video conferencing without first deciding the aforesaid objections. On these premises, prayer has been made for quashing the pending proceedings.

4. I have heard learned counsel for the petitioner and perused the paper-book.

5. The principal grievance of the petitioner is that the appeal preferred by respondent No.1 is barred by limitation and is not maintainable before respondent No.2. However, it is not disputed that the appeal remains pending consideration before the competent authority and that the petitioner has already raised all such objections by filing a detailed reply as well as a specific application (Annexure P-7).

6. The questions as to whether the appeal is within limitation, whether delay, if any, deserves to be condoned, and whether respondent No.2 possesses the requisite jurisdiction to entertain and decide the appeal, are all issues which fall squarely within the domain of the appellate authority itself. Such objections go to the root of the matter and are required to be examined by the authority before adjudicating the appeal on merits.

7. It is a settled principle that the extraordinary jurisdiction of this



Court under Article 226 of the Constitution is ordinarily not exercised to interdict proceedings pending before a statutory authority at an interlocutory stage, particularly when the authority is competent to consider and decide all objections relating to maintainability and jurisdiction. Interference at this stage would amount to pre-empting a decision on issues which are yet to be adjudicated by the authority concerned.

8. Significantly, the appeal in question has been pending since January 2025 and is now fixed for arguments. In such circumstances, this Court finds no justification to invoke its writ jurisdiction for quashing the proceedings themselves, especially when the petitioner has an adequate opportunity to press all the objections already raised before the authority concerned.

9. Accordingly, without expressing any opinion on the merits of the rival contentions, the present writ petition is disposed of with liberty to the petitioner to raise all permissible pleas before respondent No.2, including those relating to limitation, maintainability and jurisdiction.

10. It is expected that before proceeding further in the matter, respondent No.2 shall consider and decide the preliminary objections raised by the petitioner, including those contained in application dated 05.06.2026 (Annexure P-7), in accordance with law and by passing a speaking order.

Disposed of accordingly.

12.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No

Whether reportable:- Yes/No